

Sri. R. Krishnamurthy vs Smt. R. Hemalatha on 18 April, 2023

Author: Alok Aradhe

Bench: Alok Aradhe

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MFA No.8675 of 2016

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
DATED THIS THE 18TH DAY OF APRIL 2023
PRESENT
THE HON'BLE MR. JUSTICE ALOK ARADHE
AND
THE HON'BLE MR. JUSTICE VIJAYKUMAR A. PATIL
MISCELLANEOUS FIRST APPEAL NO.8675 OF 2016 (FC)
BETWEEN:

Digitally
signed by
RUPA V

Location:
High Court
of Karnataka

1. SRI. R. KRISHNAMURTHY
S/O SRI. RAJAMURTHY
AGED ABOUT 37 YEARS
R/AT NO.104, FRUIT STREET
KAMARAJ ROAD, BANGALORE-560 042.
(BY SRI. H. MUNISWAMY GOWDA, ADV., FOR
SRI. B.A. BELLILAPPA, ADV.,)

...APPELLANT

AND:

1. SMT. R. HEMALATHA
D/O LATE RAJESH KUMAR
W/O SRI. R. KRISHNAMURTHY
AGED ABOUT 33 YEARS
R/AT NO.55, HUTCHINS ROAD
3RD CROSS, ST. THOMAS TOWN
BANGALORE 560 052.

...RESPONDENT

(BY SRI. RUDRAPPA P, ADV.,)

THIS MFA IS FILED U/S 19(1) OF FAMILY COURT ACT
AGAINST THE JUDGMENT AND DECREE DATED:17.08.2016
PASSED IN M.C NO.36/2012 ON THE FILE OF THE II
ADDITIONAL PRINCIPAL JUDGE, FAMILY COURT, BENGALURU,
DISMISSING THE PETITION FILED U/S 13(1)(ia) & (ib) OF
HINDU MARRIAGE ACT.

THIS APPEAL COMING ON FOR FINAL HEARING, THIS

JUDGMENT

This appeal under Section 19(1) of the Family Courts Act, 1894 has been filed against the judgment and decree dated 17.08.2016 passed by the Family court, by which the petition filed by the appellant under Section 13(1)(ia)(ib) of the Hindu Marriage Act, 1955 has been dismissed.

2. Learned counsel for the parties jointly submit that the dispute between the parties has been amicably resolved. The terms and conditions of the joint memo read as under:

1. The appellant and respondent state that their marriage was solemnized on 25.04.2010 at Ramanashree Kalyana Mantapa, Vasanthnagar, Bengaluru, as per Hindu rites and customs.
2. Due to incompatibility, misunderstanding and differences in opinion they have been living separately from September 2011.
3. Both parties state that they have a son by name Mahadhan K, aged about 12 years presently under the care and custody of the respondent / mother and shall continue to be so in future for which the appellant / father has no objection.
4. The appellant has agreed to pay a sum of Rs.6,80,000/- (Rupees Six Lakhs Eighty Thousand Only) to the respondent towards all her claims of maintenance / permanent alimony as full and final settlement by way of Demand Draft before the Hon'ble High Court of Karnataka, Bengaluru. The respondent has agreed to receive the same.
5. The respondent has agreed not to press CrI. Misc. No.46/2012 before II Addl. PrI. Judge, Family Court, Bengaluru seeking maintenance from the appellant.
6. Both parties have agreed to co-operate in closing / quashing the proceedings in C.C. No.14113/2012 pending before ACMM-VI, Bengaluru filed under Section 498-A of IPC R/W Section 3 & 4 of D.P. Act.
7. Both the parties state that they unconditionally withdraw all the allegations made against each other either orally or expressly.
8. Both the parties agree that they have no other claim of whatsoever manner against each other either past, present or future.

9. Both the parties herein state that there is no undue influence, force, or coercion in entering into this agreement from any one or anything.

10. Both the parties admit that they shall not interfere in each other's lives in future.

3. In view of the aforesaid compromise arrived at between the parties, the marriage solemnized on 25.04.2010 is dissolved by a decree of divorce. The appellant undertakes to pay a sum of Rs.6,80,000/- by way of demand draft on or before 15.06.2023.

Accordingly, the appeal is disposed of in terms of compromise arrived at between the parties.

Sd/-

JUDGE Sd/-

JUDGE SS